



SERVICE AGREEMENT

Professional Renovation & Handyman Services

Fillable client agreement package

Ontario-focused | Legal Review Recommended

AGREEMENT DETAILS

AGREEMENT DATE		CLIENT NAME(S)	
CONTRACTOR LEGAL NAME		PROJECT ADDRESS	
BUSINESS ADDRESS		PHONE	
CONTRACTOR PHONE / EMAIL		EMAIL	
PROJECT TYPE		START / COMPLETION	

IMPORTANT USE NOTE

This fillable PDF is a practical drafting and signing package for Claybourne Home Renovation. It should be reviewed by a qualified lawyer before use, especially for larger projects, regulated trades, financing, lien holdbacks, condominium work, structural changes, or multi-party projects.

BACKGROUND AND PURPOSE

The Client wishes to retain Claybourne Home Renovation to perform residential renovation, repair, installation, construction, handyman, or related services at the Project Address.

This Agreement defines the parties' expectations, scope, payment obligations, project administration, change-order procedure, performance standards, risk allocation, and dispute-resolution process.

A clear written service agreement improves accountability and project quality by documenting scope, roles, responsibilities, operations, finances, performance expectations, implementation steps, and issue-resolution pathways.

DEFINITIONS

Agreement. this Service Agreement, all attached schedules, written change orders, drawings, specifications, selections, accepted estimates, and written addenda signed or approved by the parties.

Change Order. a written instruction or approval that modifies the scope, price, schedule, materials, design, assumptions, or other term of the Agreement.

Contract Price. the total amount payable by the Client for the Work, including labour, materials, overhead, profit, permits, fees, disposal, subcontractors, and applicable taxes where stated.

Deficiency. a portion of the Work that is incomplete or not reasonably consistent with the Agreement, applicable code requirements, approved change orders, or accepted industry practice.

Substantial Completion. the stage at which the Work is ready for its intended use, subject only to minor deficiencies that do not materially prevent use.

Work. all services, labour, supervision, materials, equipment, subcontracted work, project administration, clean-up, and deliverables described in this Agreement.

4. SCOPE OF WORK AND PROJECT DOCUMENTS

The Contractor shall perform only the Work described in Schedule A and any approved Change Orders. Any item not expressly included is excluded unless the parties agree otherwise in writing.

The Scope of Work should identify rooms, dimensions, finishes, materials, fixtures, appliances, brands, model numbers, drawings, permits, demolition, disposal, site protection, cleaning, and assumptions.

Where the Client supplies plans, specifications, selections, materials, appliances, fixtures, or site information, the Client is responsible for their accuracy, suitability, availability, and compatibility unless the Contractor expressly accepts responsibility in writing.

The Contractor may recommend sequencing, substitutions, or practical adjustments, but no recommendation changes the Contract Price, scope, schedule, or warranty unless approved through the Change Order process.

5. CONTRACT PRICE, ESTIMATE, TAXES, AND PAYMENT

The Contract Price is stated in Schedule B plus applicable HST, unless the written estimate or Schedule B states that taxes are included.

If an estimate forms part of this Agreement, the final price for the listed goods and services will not exceed the original estimate by more than ten percent unless the Client agrees to new work, a new price, or a written Change Order.

The Client shall pay the deposit and progress payments set out in Schedule B. Deposits should reflect actual project needs, custom orders, booking requirements, and mobilization costs.

Invoices are due within the period stated in Schedule B. Overdue amounts may accrue interest at the rate stated in Schedule B, or the maximum rate permitted by law if lower.

The Client shall not withhold payment except for a good-faith dispute about defective, incomplete, or unauthorized Work. Any undisputed portion remains payable when due.

Where Ontario construction lien holdback rules apply, the parties shall address statutory holdback, release timing, and any related documentation in Schedule B or obtain legal advice before signing.

6. SCHEDULE, ACCESS, AND DELAYS

The Contractor shall use commercially reasonable efforts to meet the project schedule, subject to timely Client decisions, permit availability, inspection timing, product availability, weather, concealed conditions, trade availability, supplier delays, emergencies, and events beyond the Contractor's reasonable control.

The Client shall provide safe, reasonable, and uninterrupted access to the work area, utilities, parking, elevators, loading areas, garbage areas, and any building-management contacts required for the Work.

A delay caused by the Client, building management, other contractors, suppliers selected by the Client, municipal authorities, inspections, concealed conditions, or force majeure may extend the completion date and may result in additional costs.

If the Client requests acceleration, overtime, resequencing, or special coordination, the parties shall document the cost and schedule impact by Change Order before the accelerated Work proceeds.

7. MATERIALS, PRODUCT SELECTIONS, AND SUBSTITUTIONS

The Client shall make product, colour, finish, layout, fixture, hardware, appliance, and material selections by the deadlines in Schedule C. Late selections may delay the Work and may increase costs.

Natural materials, wood, stone, tile, grout, paint, stain, metal, and manufactured products may vary in colour, grain, texture, size, lot, sheen, pattern, and appearance. Reasonable variations are not deficiencies.

If a specified product is unavailable, delayed, discontinued, unsuitable, or materially changed in price, the Contractor may propose a comparable substitution. Substitutions affecting appearance, price, performance, or schedule require Client approval.

Client-supplied materials are excluded from the Contractor's warranty except for installation workmanship, and the Contractor is not responsible for manufacturer defects, missing parts, late delivery, inaccurate specifications, or incompatibility unless caused by the Contractor.

8. PERMITS, CODE, REGULATED TRADES, AND INSPECTIONS

The Work shall be performed in a workmanlike manner and, where applicable, in accordance with building code requirements, municipal requirements, permit conditions, inspection requirements, and manufacturer installation instructions.

Responsibility for obtaining permits shall be stated in Schedule D. Construction shall not proceed on permit-required Work until the required permit is issued, unless the Client instructs otherwise after receiving written risk disclosure and legal advice.

Electrical, plumbing, HVAC, gas, structural, engineering, architectural, environmental, or other regulated work may require licensed trades, inspections, permits, drawings, or third-party professionals. Such costs are included only if expressly listed.

If an inspection requires correction of pre-existing work, concealed conditions, unpermitted past work, or Client-supplied materials, the related cost and delay will be handled by Change Order unless caused by the Contractor.

9. EXISTING AND CONCEALED CONDITIONS

The Contract Price is based on visible conditions and information available when the Agreement is signed. Existing or concealed conditions may include rot, mould, asbestos, lead, pests, water damage, structural issues, unsafe wiring, deficient plumbing, code non-compliance, uneven framing, hidden utilities, or prior defective work.

If concealed or unexpected conditions are discovered, the Contractor may pause affected Work, secure the area, notify the Client, and provide options. Additional investigation, remediation, design, permits, materials, labour, disposal, and delay will be addressed by Change Order.

The Contractor is not responsible for pre-existing defects, hazardous substances, building movement, hidden utilities, moisture sources, foundation issues, previous renovations, or building-envelope failures unless the Contractor caused the issue.

10. CHANGE ORDERS

No change to scope, specifications, materials, schedule, price, or assumptions is binding unless approved in writing by the Client and Contractor before the changed Work begins, except for urgent work required to protect life, safety, property, or the Work.

A Change Order should describe the change, price adjustment, schedule impact, revised allowances, affected selections, and any warranty or permit implications.

Verbal requests, text messages, emails, site conversations, design revisions, product changes, and additional tasks may constitute approval if they clearly show Client authorization and the Contractor reasonably relies on them. The parties should promptly convert them into a written Change Order.

If the Client disputes a proposed change, the Contractor may continue unaffected Work and pause the disputed portion until the parties reach written agreement.

11. CLIENT RESPONSIBILITIES

Provide accurate project information, ownership authority, condominium or landlord approvals, building rules, and access requirements.

Remove valuables, fragile items, artwork, electronics, personal property, pets, and obstructions from the work area before work begins.

Maintain adequate property insurance and notify the insurer of renovation activity where required.

Make timely decisions, selections, approvals, and payments.

Do not enter active work areas without permission, alter the Work, direct subcontractors, or use partially completed systems unless the Contractor confirms it is safe.

Disclose known hazards, leaks, structural concerns, prior unpermitted work, and other relevant site conditions.

12. SITE PROTECTION, SAFETY, AND CLEAN-UP

The Contractor shall take reasonable steps to protect the work area and adjacent areas from avoidable damage, dust, and debris, recognizing that renovation work is disruptive and may create noise, vibration, dust, odours, and temporary service interruptions.

The Contractor may establish reasonable site rules, including restricted access, tool and material storage areas, temporary protection, shut-offs, and work-hour coordination.

Daily broom-cleaning and final construction debris removal are included only to the extent stated in Schedule A. Professional deep cleaning, air duct cleaning, moving services, and specialty remediation are excluded unless listed.

13. SUBCONTRACTORS, LABOUR, INSURANCE, AND WSIB

The Contractor may use employees, independent subcontractors, specialty trades, suppliers, and consultants to perform or support the Work. The Contractor remains responsible for coordinating subcontracted Work within the agreed scope.

The Contractor shall maintain commercially reasonable insurance for its operations. The Client may request proof of insurance before work begins.

Workers and independent operators in Ontario construction may require Workplace Safety and Insurance Board coverage unless an exception applies. The parties should confirm the required coverage for the project before work begins.

14. PERFORMANCE STANDARDS, REVIEW, AND COMPLETION

The Contractor shall perform the Work with reasonable skill and care consistent with accepted residential renovation practice for the type, age, and condition of the property.

Near Substantial Completion, the parties shall conduct a reasonable review and prepare a written deficiency list. The Client shall identify known deficiencies promptly and provide reasonable access for correction.

Minor deficiencies, manufacturer backorders, seasonal work, warranty items, or items delayed by third parties do not justify withholding the full unpaid balance where the Work is otherwise substantially complete and usable.

The Contractor's obligation to correct deficiencies is conditional on payment of undisputed amounts, reasonable access, and the Client not preventing or altering the correction work.

15. WARRANTY

15.1. Claybourne Home Renovation provides a 1-Year Limited Workmanship Warranty from Substantial Completion on eligible completed renovation work for defects caused by Claybourne labour or workmanship within the agreed scope.

15.2. Covered workmanship items may include installation defects, workmanship errors, improper fastening, trim separation, grout cracking from improper installation, leaks caused by installation error, cabinet alignment issues, and paint peeling caused by preparation failure.

15.3. This warranty does not cover manufacturer defects, normal wear and tear, customer damage, house movement or shifting, moisture or pre-existing issues, plumbing or electrical systems not installed by Claybourne, abuse, improper maintenance, third-party work, unauthorized repairs, or damage from accidents, weather, pets, tenants, or occupants.

15.4. Claybourne's warranty covers labour/workmanship. Manufacturer warranties cover materials/products and remain with their manufacturers.

15.5. Example: flooring that fails because of a defective locking system is a manufacturer issue. Flooring that separates because of improper installation is a workmanship issue.

15.6. The Client must notify Claybourne in writing within a reasonable time after discovering a warranty concern and must provide reasonable access to inspect and, if applicable, correct the issue.

16. CANCELLATION, SUSPENSION, AND TERMINATION

Where the Consumer Protection Act, 2002 or other applicable law gives the Client a cooling-off period or cancellation right, that right applies regardless of any contrary wording in this Agreement.

For a home renovation or repair contract worth \$50 or more signed in the Client's home, Ontario guidance states that the Client may have a 10 calendar-day cooling-off period. If work starts during that period and the Client cancels, the Client may be responsible for reasonable compensation for work and materials already provided.

The Contractor may suspend Work if the Client fails to pay undisputed amounts, denies access, fails to make required selections, interferes with safety, or materially breaches the Agreement. Suspension may extend the schedule and create remobilization costs.

Either party may terminate for material breach if the breach is not cured within the period stated in Schedule B after written notice. On termination, the Client shall pay for completed Work, materials ordered or restocking fees, demobilization, approved Change Orders, and reasonable costs incurred to the termination date, less amounts already paid.

The Contractor may terminate immediately if continuing the Work would be unsafe, unlawful, uninsured, unpermitted, or impossible due to Client conduct, site conditions, or authority having jurisdiction.

17. DISPUTE RESOLUTION

The parties shall first attempt to resolve concerns through direct discussion between the Client and Contractor representative.

If unresolved, either party may provide a written notice describing the dispute, requested remedy, supporting documents, and proposed resolution meeting date.

17. DISPUTE RESOLUTION (CONTINUED)

If the dispute remains unresolved after good-faith discussion, the parties may agree to mediation before litigation or other remedies. Nothing prevents a party from preserving lien rights, seeking urgent relief, collecting undisputed amounts, or using a statutory complaint process where available.

The parties shall continue performing undisputed obligations during a dispute where safe and practical.

18. LIMITATION OF LIABILITY AND INDEMNITY

To the maximum extent permitted by law, the Contractor is not liable for indirect, incidental, consequential, special, exemplary, or punitive damages, including loss of use, temporary accommodation, inconvenience, lost income, financing costs, or emotional distress, except where such limitation is prohibited by law.

The Contractor's aggregate liability arising from the Agreement shall not exceed amounts paid to the Contractor under the Agreement, except for liability that cannot legally be limited, insured claims actually paid by insurance, or damage caused by gross negligence or wilful misconduct.

The Client shall indemnify the Contractor from claims, losses, penalties, and costs arising from inaccurate Client information, Client-supplied materials, unsafe Client conduct, pre-existing conditions, third-party work, undisclosed hazards, or lack of required owner, condominium, landlord, or municipal approvals.

19. PRIVACY, PHOTOGRAPHY, AND MARKETING

The Contractor may collect and use Client contact information, project information, photographs, communications, invoices, and records for estimating, scheduling, performing, documenting, warranty, accounting, insurance, legal, and business administration purposes.

The Contractor may photograph or video the work area for documentation, progress, safety, warranty, training, and portfolio purposes. Public marketing use of identifiable addresses, people, personal items, or private information requires Client consent.

Before-and-after photographs may be used for marketing only if they do not disclose sensitive personal information and the Client has not opted out in Schedule F.

20. NOTICES, ENTIRE AGREEMENT, AND GOVERNING LAW

Notices may be delivered by personal delivery, courier, mail, or email to the addresses listed in this Agreement. Email notices are deemed received when sent unless a delivery failure notice is received.

This Agreement, attached schedules, and approved Change Orders form the entire agreement and replace prior discussions, proposals, advertisements, estimates, or representations not included in writing.

If a provision is unenforceable, the remaining provisions continue in effect. A waiver must be written and applies only to the specific matter waived.

This Agreement is governed by the laws of Ontario and the laws of Canada applicable in Ontario, unless another province or territory is expressly stated in Schedule B.

CLIENT ACKNOWLEDGEMENT

Client confirms they have had an opportunity to review the service agreement terms above and ask questions before signing the execution page.

CLIENT INITIALS

DATE

SCHEDULE A - DETAILED SCOPE OF WORK

ROOMS / AREAS INCLUDED

INCLUDED WORK

EXCLUDED WORK

MATERIALS AND FINISHES

DEMOLITION AND DISPOSAL

PROTECTION AND CLEAN-UP

ASSUMPTIONS AND CLIENT-SUPPLIED ITEMS

SCHEDULE B - PRICE AND PAYMENT SCHEDULE

MILESTONE	DESCRIPTION	AMOUNT	DUE DATE

HOLDBACK / LIEN NOTE

INVOICES DUE WITHIN

OVERDUE INTEREST

GOVERNING LAW EXCEPTION

SCHEDULE C - SELECTION DEADLINES

TILE / FLOORING

PAINT / STAIN

FIXTURES / HARDWARE

CABINETS / COUNTERTOPS

OTHER

SCHEDULE D - PERMITS AND APPROVALS

CLIENT IS RESPONSIBLE FOR OBTAINING

CONTRACTOR IS RESPONSIBLE FOR OBTAINING

☐ Condominium / landlord / building management approvals required

SCHEDULE E - WARRANTY DETAILS

WORKMANSHIP WARRANTY PERIOD

MANUFACTURER WARRANTIES

WARRANTY CONTACT

SPECIAL COVERAGE / EXCLUSIONS

SCHEDULE F - PHOTOGRAPHY CONSENT

- ☐ Non-identifying progress photos for documentation
- ☐ Portfolio use of before-and-after images without address or personal details
- ☐ Social media use

RESTRICTIONS

SCHEDULE G - CHANGE ORDER FORM

CHANGE ORDER NO.

DATE

REQUESTED BY

PRICE IMPACT

DESCRIPTION OF CHANGE

SCHEDULE IMPACT / NOTES

APPROVED BY CLIENT

APPROVED BY CONTRACTOR

SCHEDULE H - CLIENT CANCELLATION NOTICE

To cancel this Agreement, the Client may send written notice to Claybourne Home Renovation at the contact information listed in this Agreement. The notice should identify the Client, Project Address, Agreement Date, and state that the Client is cancelling the Agreement.

CLIENT NAME

PROJECT ADDRESS

AGREEMENT DATE

NOTICE SENT

CLIENT SIGNATURE

EXECUTION

By signing below, the parties confirm that they have read, understood, and agreed to this Agreement, including all schedules and attachments.

CLIENT SIGNATURE

CONTRACTOR SIGNATURE

CLIENT NAME

REPRESENTATIVE NAME / TITLE

DATE

DATE

REFERENCE NOTES

Public references consulted include Treasury Board of Canada Secretariat, Guideline on Service Agreements: An Overview, and Government of Ontario guidance on home renovations, estimates, cancellation rights, and written contracts. Legal review recommended before use.